APHC010456352026

IN THE HIGH COURT OF ANDHRA PRADESH
AT AMARAVATI **[3331]**
(Special Original Jurisdiction)

WEDNESDAY, THE 2nd DAY OF SEPTEMBER 2026

PRESENT

THE HONOURABLE SRI JUSTICE SUBBA REDDY SATTI

WRIT PETITION NO: 24782/2026

Between:

1. KEESARA VENKATA REDDY, S/O. VENKATAIAH AGE 55 YEARS, R/O. OCC CULTIVATION NIKARAMPALLI VILLAGE, MARKAPURAM MANDAL, MARKAPURAM (ERSTWHILE PRAKASAM) DISTRICT 523329

...PETITIONER

AND

1. THE STATE OF ANDHRA PRADESH, REP BY ITS PRINCIPAL SECRETARY, REVENUE DEPARTMENT SECRETARIAT BUILDINGS, AMARAVATHI, GUNTUR DISTRICT -522238
2. THE DISTRICT COLLECTOR, MARKAPURAM DISTRICT, AT MARKAPURAM-523316
3. THE REVENUE DIVISIONAL OFFICER, MARKAPUR DIVISION MARKAPUR, MARKAPURAM DISTRICT -523316
4. THE TAHSILDAR, MARKAPURAM MANDAL MARKAPURAM, MARKAPURAM DISTRICT -523316

...RESPONDENT(S):

Petition under Article 226 of the Constitution of India praying that in the circumstances stated in the affidavit filed therewith, the High Court may be pleased to issue an appropriate order or direction more particularly, one in the nature of Writ of Mandamus declaring the Notice vide R.0 No. A/1920/2026 Dated. 17.08.2026 under section 6 of AP Land Encroachment Act 1905 issued by the 4th respondent to evict me from my agricultural land an extent of Ac. 0.52 Cents in Sy. No. 190/2E of Nikarampalli Village, Markapuram Mandal, Markapuram District, as illegal, arbitrary, ultra virus, against to the settled principle of law in Kadiyala Sudershan and others Vs. Govt. of AP reported in 2013 (6) ALT 42 and contrary to the principles of natural justice apart from being violative of Article 19 (1) (g), 21 and 300-A of the Constitution of India and consequentially set aside the same in the interest of justice

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Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased Suspend the Notice vide R.0 No. A/1920/2026 Dated. 17.08.2026 under section 6 of AP Land Encroachment Act 1905 issued by the 4th respondent and direct the respondent not to interfere with my peaceful possession and enjoyment of my agricultural land an extent of Ac. 0.52 Cents in Sy. No. 190/2E of Nikarampalli Village, Markapuram Mandal, Markapuram District, pending disposal of the above writ petition in the interest of justice

Counsel for the Petitioner:

1. MULLA SOHAIL SHAREEF

Counsel for the Respondent(S):

1. GP FOR REVENUE

The Court made the following:

::ORDER ::

Assailing the order issued under Section 6 of the Andhra Pradesh Land Encroachment Act, 1905 (hereinafter referred to as 'the Act'), the above writ petition was filed.

2. Heard learned counsel appearing on both sides.

3. Learned counsel for the petitioner would submit that respondent No.4 issued notice under Section 7 of the Act *vide* Ex.P3. The petitioner submitted an explanation *vide* Ex.P2. Without considering the explanation and affording an opportunity of hearing to the petitioner, the Ex.P1 order was passed.

4. Learned Assistant Government Pleader for Revenue would submit that the Ex.P2 explanation has not been received by respondent No.4.

5. In **Kadiyala Sudershan and others v. Government of Andhra Pradesh represented by its Principal Secretary, Revenue Department and others**[1], a learned single judge of the Composite High Court, at para Nos.5 & 6, observed as follows:

[1] 2013(6) ALT 42 (S.B)

"5. A person in possession of the Government land is liable to be evicted under the provisions of the Act. The Act has laid down the procedure for evicting such person. As a first step towards this direction, a show-cause notice under Section 7 of the Act requires to be given to the person in occupation of the land. After receiving the notice, an order needs to be passed under Section 6 of the Act. If the competent authority is satisfied that the person in possession of the land is liable to the evicted, he has to issue a notice in the prescribed form. Though the provisions of Section 6 of the Act do not in express terms enjoin on the competent authority to pass a speaking order, the very fact that Section 7 of the Act envisages a show-cause notice pre-supposes that the competent authority has to deal with the explanation/objections filed by the person in possession of the land. Unless a reasoned order is passed, the person in occupation of the land does not know as to why an order of eviction is passed against him. Further, an appeal under Section 10 of the Act is envisaged by the Act. Unless the order contains reasons, the appellate authority will not be in a position to examine the validity or otherwise of the order and decide the appeal.

6. From the scheme of the Act, I am of the opinion that the notice of eviction prescribed under Section 6 of the Act, which is akin to a decree, needs to be supported by a reasoned order comparable to a judgment. Otherwise, Section 7 of the Act providing for issuance of a show-cause notice would be rendered nugatory or reduced to an empty formality."

6. A perusal of Ex.P1, does not contain any reasons, except for stating that the petitioner has not submitted any explanation.

7. It is a settled principle of law that reasoning is the heartbeat of every order. The quasi-judicial authority shall consider the contentions of the parties. If the authority does not accept, there should be a finding to that effect. The reasons recorded by the authority disclose the mental process by which the decision has been reached and demonstrate that the matter has received due

and thoughtful consideration. The reasons assure the parties that their submissions have been considered and promote transparency in the administration of justice. The reasons further facilitate appellate or supervisory review courts in understanding the order. Reasons serve as a safeguard against arbitrariness by ensuring that conclusions are grounded in legal principles and evidence rather than mere subjective opinion. Non-recording of reasons could lead to dual infirmities; firstly, it may cause prejudice to the affected party and secondly, more particularly, hamper the proper administration of justice. Therefore, recording of clear, cogent reasons is an indispensable component of the rule of law. See **S.N.Mukherjee v. Union of India[2].**

8. Given the observations of the Hon'ble Apex Court, the Writ Petition is allowed. The order impugned is set aside. The matter is remanded to respondent No.4. Learned respondent No.4 shall consider the explanation submitted by the petitioner *vide* Ex.P2 and pass a reasoned order, by affording an opportunity of hearing to the petitioner, strictly as per the Rules, within four (04) weeks from the date of receipt of a copy of the order. Till an order is passed, respondent No.4 shall not interfere with the land mentioned in Ex.P3 notice. No order as to costs.

As a sequel, pending miscellaneous petitions, if any, shall stand closed.

JUSTICE SUBBA REDDY SATTI

Date: 02.09.2026
TVN

Whether the order is :
Speaking Yes/No / Reasoned **Yes**/No
Reportable Yes/No / Non-Reportable **Yes**/No

[2] 1990(4) SCC 594

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